

		by merger to OCWEN LOAN SERVICING, LLC (erroneously sued as separate entities) (hereinafter “PHH”), ONITY GROUP INC. (erroneously sued as “Onity Mortgage Group”) (hereinafter “ONITY”), and GLEN A. MESSINA (erroneously sued as “Glen A. Massina”) (hereinafter “MESSINA”), (collectively “Defendants”), hereby demur to the Second Amended Complaint (“SAC”) filed by Plaintiff DESIREE A. JONES (“Plaintiff”). This Demurrer is made on the grounds that the Complaint fails as a matter of law as it is uncertain, contradictory to prior pleadings and fails to state facts sufficient to constitute any cause of action against Defendants. Code Civ. Proc. §430.10, subd. (e) and (f). DEMURRER AND MOTION TO STRIKE (ROAS 66, 67) ARE CONTINUED TO 09/29/2026 AT 10:00 AM. Defendants filed an objection indicating they did not receive the opposition. Plaintiff to properly reserve the opposition forthwith. Defense counsel and Plaintiff are to properly meet and confer per code, and Defense counsel is to file a declaration setting forth the results 9 court days prior to the continued hearing date. Clerk to give notice.
105	Moslehi vs. County of Orange 24-01428581	Motion to Vacate the Jury Trial Plaintiff Arash Moslehi seeks an order vacating the jury trial and setting the case for bench trial. There is no proof of service accompanying the motion, and none of the remaining defendants has filed a response to the motion. The motion is therefore denied for failure to comply with Code of Civil Procedure section 1005, which requires all moving papers to be served and filed at least 16 court days before the hearing. (CCP §1005(b).) In addition, a proof of service of the moving papers

		must be filed no later than five court days before the hearing. (CRC 3.1300(c).) Even if the motion were properly served, Defendant has provided no memorandum of authorities to support the relief requested. (See CRC 3.1113(a) (“The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial . . .”).) Finally, even if the Court considered the merits, the motion would be denied because at least one party has requested a jury trial in this matter and posted the required fees. (See, e.g., ROA 60.) “As a general proposition, the jury trial is a matter of right in a civil action at law, but not in equity.” (C & K Engineering Contractors v. Amber Steel Co., Inc. (1978) 23 Cal.3d 1, 8; NMSBPCSLDHB v. County of Fresno (2007) 152 Cal.App.4th 954, 958.) This is a civil action, and the complaint appears to consist primarily, if not entirely, of legal causes of action. Accordingly, the motion is DENIED. The Court orders the Clerk to give notice.
106	S.K. Laboratories, Inc. vs. Tiger Fitness, Inc. 24-01422874	Motion for Entry of Judgment Plaintiff S.K. Laboratories, Inc. ("Plaintiff" or "SKL") moves the Court for entry of judgment against Defendants Tiger Fitness, Inc., Vorlo, Inc., and Chad Vordem Esche (collectively, “Defendants”) pursuant to the terms of a Stipulation for Entry of Judgment Upon Default. Motion is denied without prejudice. Defendants are in default. Entry of default deprives the court of jurisdiction to consider any motion other than a motion